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**EXECUTIVE OFFICE FOR IMMIGRATION REVIEW, LOS ANGELES
IMMIGRATION COURT**

In re Hernandez

Case No. A239-341-349

**COMPLAINT FOR DAMAGES AND
DEMAND FOR JURY TRIAL**

IJ Marisela Ocampo-Reyes
Courtroom 4

Plaintiff Hernandez, Marisela alleges as follows:

1. This action arises from removal defense (eoir) involving U.S. Department of Homeland Security.
2. Venue is proper in this Court under Code of Civil Procedure section 395 because the obligations and injuries alleged occurred in the County of Los Angeles.
3. Defendant U.S. Department of Homeland Security is represented in this matter by Office of the Chief Counsel, U.S. Immigration and Customs Enforcement.
4. This action is timely under 8 C.F.R. 1003.38 (30 days to appeal to BIA).

FIRST CAUSE OF ACTION — Removal Defense (EOIR) - Relief Requested

5. The foregoing allegations are realleged and incorporated by reference. As a direct and proximate result, plaintiff suffered damages in an amount to be proven at trial, exceeding the jurisdictional minimum of this Court.

SECOND CAUSE OF ACTION — Declaratory Relief (Code Civ. Proc. 1060)

6. The foregoing allegations are realleged and incorporated by reference. Plaintiff has been damaged in a sum within the unlimited jurisdiction of this Court, to be established according to proof.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays for general and special damages according to proof, prejudgment interest, costs of suit, and such other relief as the Court deems just.

Dated: December 26, 2024

Alvarado & Sung LLP

By: _____

Miguel Teran

Attorneys for Hernandez, Marisela